

contract for subcontractor work by Tank-Tek on which the claims alleged in the cross-complaint are based. Tank-Tek does not dispute that the contracts and transactions involved in the complaint are different from those involved in the cross-complaint, but Tank-Tek contends the actions should be tried together because the oral contract and related claims and transactions alleged in the cross-complaint are the basis for Tank-Tek's affirmative defense of offset.

This case has been pending for approximately seven months. The Court has concurrently sustained a demurrer to some of the causes of action of the cross-complaint, with leave to amend. The pleadings are not settled. A further case management conference is set for January 20, 2027. The claims alleged in the complaint and cross-complaint at least on their face do not appear to be particularly complicated, such that it is not clear that there would be confusion if the complaint and cross-complaint are not tried together. On this record, the Court has no information or evidence on this motion addressing the anticipated proof at trial, including whether the same fact witnesses will be appearing on the complaint and cross-complaint, whether or not there will be overlapping documentary evidence on the complaint and cross-complaint issues, whether the parties anticipate the need for expert witnesses, and if so, whether any experts would be expected to testify at trial on both the complaint and cross-complaint.

The Court finds that it is premature to determine whether bifurcation is appropriate to try the complaint separately from the cross-complaint and to order the complaint tried first. The Court also finds that the Court does not have a sufficient factual record or information at this early stage in the case to address procedures for any future trial, including verdict forms and jury instructions or the order of presentation of the claims and evidence. Petro's request to bifurcate the case to try the claims alleged in the complaint first may be appropriate, but the Court finds it is premature to determine the issues raised in the motion at this point.

Conclusion and Ruling

In the Court's discretion, the motion is **DENIED, WITHOUT PREJUDICE** to either party bringing a request for bifurcation or for orders regarding the presentation of claims and evidence in connection with any future trial setting or otherwise as appropriate as the case develops.

16. 9:00 AM CASE NUMBER: MSC22-00134
CASE NAME: RODRIGUEZ VS. STRONG
HEARING ON DEMURRER TO: 1ST AMENDED CROSS COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendant Alberto Mendez to the first amended cross-complaint filed by cross-complainant Michelle Strong.

Background

This action involves disputes over the operation of a restaurant and brewery business in Martinez, now closed. In the main action in the currently operative first amended complaint, Plaintiff Juan Reynaldo Rodriguez has sued Michelle Strong, LaSalle Strong, and Rocksteady Brewery Co. On April 29, 2022, Michelle Strong and LaSalle Strong filed a cross-complaint against Juan Rodriguez. After Rocksteady was added as a defendant in the main action, Rocksteady filed a cross-complaint against

Michelle Strong and LaSalle Strong on November 18, 2025.

On December 23, 2025, Michelle Strong filed a first amended cross-complaint ("FACC") naming Juan Rodriguez, R&A Restaurant Group, LLC ("R & A Group"), and Alberto Mendez, erroneously named as Albert Mendez, as cross-defendants in the caption. The FACC alleges 12 causes of action. Alberto Mendez has filed a general demurrer to four of those causes of action.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court does not consider evidence outside the pleading, except matters subject to judicial notice. (*Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

In determining whether the complaint states a cause of action, the Court evaluates "whether a cause of action has been stated under any legal theory. [Citation omitted.]" (*Gomez v. Regents of University of California* (2021) 63 Cal.App.5th 386, 391.) (*See also Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38 ["If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer."].) If there is a reasonable possibility of amendment to cure the deficiencies in a complaint, then leave to amend must be granted. (*Quelimane Co., supra*, 19 Cal.4th at 39.)

Strong's Request for Judicial Notice in Opposition to the Demurrer (Mistitled in the Caption as the Opposition)

Strong requests the Court take judicial notice of (1) a Statement of Information for Rocksteady Brewing Company filed on April 23, 2024 with the California Secretary of State listing Juan Reynaldo Rodriguez as Chief Executive Officer, Chief Financial Officer, and Alberto Mendez as Secretary; (2) a Statement of Information for R & A Restaurant Group, LLC filed on May 15, 2024 with the California Secretary of State listing Alberto Mendez as a manager or member and Juan R. Rodriguez as CEO and agent for service of process; and (3) records of the California Department of Alcoholic Beverage Control related to a transfer of a liquor license from Rocksteady Brewing Company to R & A Group, bearing a signature of Alberto Mendez and a date of June 10, 2024. (Strong RJN Exhs. A-C.)

Mendez objects to the Court taking judicial notice of the documents on the grounds they lack foundation as not authenticated by a declaration or submitted with a declaration as to their source. The documents are government records of which the Court can take judicial notice under Evidence Code section 452(c) as to their existence, subject to the limitations on the scope of judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].) The Court takes note of Mendez's objection that the Statements of Information are incomplete as they include only

"page 1 of 2," and the department of ABC documents do not include any file number. Nevertheless, both Statements of Information bear "filed" stamps, and the ABC documents are marked on each page "RECEIVED Jun 10, 2024 Dept. of Alcoholic Beverage Control Concord District Office." The Court finds the documents have sufficient indicia of authenticity and **GRANTS** the request, subject to the limitations in the case law noted above.

Procedural Issues on Cross-Complainant Strong's Papers

Pleadings filed with the Court are required to have page numbers at the bottom. (Cal. R. Ct., Rule 2.112.) The FACC has no page numbers, a defect which should be corrected in any amended pleading Strong may file.

Strong's original opposition to the demurrer was untimely by one day. The original hearing date on the demurrer was set for August 17, 2026, and Strong filed her opposition on August 5, 2026 instead of August 4, 2026, which was nine court days prior to the hearing. (Code Civ. Proc. § 1005(b).) The opposition was late in violation of the Code of Civil Procedure.

Strong's supplemental opposition exceeds 10 pages but does not include the tables of contents and authorities required for a brief longer than 10 pages. (Cal. R. Ct., Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].)

The Court also has **no proof of service on file** showing that Strong served **any** of her opposition pleadings on the other parties. Mendez's current counsel filed a declaration with the original reply declaring that as of August 10, 2026, the predecessor counsel had not received service of Strong's opposition papers. (Hirsch Reply Decl. ¶¶ 5-9 filed 8/10/2026.) The failure to file proofs of service showing service of the opposition documents, and more important, the failure by Strong to actually serve her papers on the other parties, also violate the applicable rules. (Code Civ. Proc. §§ 1005(b) and 1005(c) [opposition deadlines and requirements for service of opposition papers]; Cal. R. Ct., Rule 1.21 [service of documents and filing proofs of service].) Proofs of service are necessary for the Court to ensure the other parties have received copies of the documents filed with the Court, that the documents were served in accordance with the applicable procedural requirements such as Code of Civil Procedure section 1005(c) which requires opposition and reply papers to be served by overnight mail, electronic mail, or other expeditious means as stated in the statute, and as a matter of due process.

Nevertheless, Mendez filed a full reply on the merits, and the Court continued the hearing on the demurrer for supplemental briefing as set forth in the Court's August 17, 2026 tentative ruling adopted by the Court. The Court does not find that Mendez has been prejudiced by the late and apparently unserved opposition under the circumstances and will consider the opposition papers.

Plaintiff as a self-represented party is required to comply with the applicable rules and procedures like any other litigant. (*Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) Though the Court has considered the opposition and supplemental opposition despite the procedural violations noted above, **Strong is cautioned that the Court expects compliance with the applicable rules and procedures in future filings.** Future noncompliance may result in the Court not considering Strong's noncompliant filings.